



File No: EXP202302265

RESOLUTION OF RIGHTS PROCEDURE

The procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), have been carried out, and the following FACTS have been established:

FIRST: Mr. A.A.A. (hereinafter, the claimant) exercised the right to erasure against DIARIO OFICIAL DE CASTILLA-LA MANCHA (hereinafter, the respondent) without receiving the legally established response to his request.

He filed a complaint for the lack of attention to two requests for the removal of his data related to a publication made by the Ministry of Education, Culture, and Sports in the Official Gazette of Castilla-La Mancha (DOCM) dated ***DATE.1, where his full name and ID number appear.

He states that on June 13, 2022, he sent his first request to the DOCM.

Along with the complaint, he provides the response from the respondent, which grants his request, informing him that they have proceeded, through a computer tool, to prevent the indexing of the data through search engines, so that entering the name of the interested party in the search engines does not yield the referred publication as a result.

On November 22, 2022, the claimant sent a new request to the DOCM.

He provides a copy of the response received, where they inform him that they have tested various search engines and see that it appears on Google, not knowing if any other search engine yields the same result, inviting him to contact that search engine or any other of which he is aware that has the same issue.

Subsequently, he sent a request for erasure to Google, which denied his request on November 23, 2022, in the following terms: "Your personal information from the following pages is publicly available on the website of a governmental entity or official institution (for example, on that of a university). Consequently, we cannot remove it from search results in accordance with our policies."

SECOND: In accordance with Article 65.4 of the LOPDGDD, the aforementioned complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations, without any response having been received.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for understanding the claims of the claimant to be satisfied. Consequently, on April 9, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, so that within ten working days, they could present any arguments they deemed appropriate, stating, in summary, that they received two requests from the claimant, to which they responded, "(...) after requesting the IT technicians to carry out the necessary actions to grant the claimant what was requested."

"Since the first request for the right to be forgotten was received from the claimant, the data controller, the Deputy Minister of Local Administration and Administrative Coordination, responded favorably to the claimant regarding his exercise of rights, after having requested the IT technicians to carry out the necessary actions to eliminate the indexing subject to the complaint.

The IT technicians used the robot.txt file, but on that occasion, it was not subsequently verified that access to the indicated URL was not accessible from Google; it could be that for some reason this measure did not work."

FOURTH: After examining the document submitted by the respondent, it is forwarded to the claimant, so that, within fifteen working days, he may formulate any arguments he considers appropriate, stating that "(...) Given the arguments of the Official Gazette of Castilla-La Mancha, I proceed to verify that my data is no longer accessible in Google searches through my ID number."

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in its Article 57, among them, to enforce the Regulation and promote awareness among data controllers and processors regarding the

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obligations that fall upon them, as well as addressing claims made by an interested party and investigating the reasons for such claims.

Correspondingly, Article 31 of the GDPR establishes the obligation for controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, prior to the admission for processing of the claim that gives rise to this procedure, the claim was forwarded to the respondent party for analysis, to respond to this Agency within one month, and to prove that they had provided the claimant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

The result of this forwarding did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on April 9, 2023, for the purposes provided in Article 64.2 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the claim for processing. This admission agreement determines the opening of the present procedure for failure to attend to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"1. When the procedure refers exclusively to the failure to attend to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the claimant. After this period, the interested party may consider their claim accepted."

It is not deemed appropriate to clarify administrative responsibilities within the framework of a sanctioning procedure, whose exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the present procedure the guarantees and rights of the claimant are duly restored.

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III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the interested party, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless they can demonstrate that they are unable to identify the interested party, and to state their reasons in case they do not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right to erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The interested party shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase the personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the interested party withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and this is not based on another legal ground;
- c) the interested party objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the interested party objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law applicable to the controller;

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f) the personal data has been obtained in relation to the offer of information society services mentioned in Article 8, paragraph 1.

2. When personal data has been made public and the data controller is obliged, under the provisions of paragraph 1, to delete such data, the data controller, taking into account the available technology and the cost of its application, shall adopt reasonable measures, including technical measures, to inform controllers who are processing the personal data of the data subject's request for deletion of any link to such personal data, or any copy or replica of the same.

3. Paragraphs 1 and 2 shall not apply when the processing is necessary:

- a) to exercise the right to freedom of expression and information;
- b) for compliance with a legal obligation requiring the processing of data imposed by Union or Member State law applicable to the data controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9, paragraph 2, letters h) and i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes, or statistical

purposes, in accordance with Article 89, paragraph 1, insofar as the right referred to in paragraph 1 could make impossible or seriously impede the achievement of the objectives of that processing, or e) for the establishment, exercise, or defense of legal claims."

V

Conclusion

In the case analyzed here, from the examination of the submitted documentation, it has been established that the claimant exercised their right to deletion and that, despite the respondent indicating that their right had been addressed, their data remained accessible. After reiterating the request, the outcome was similar.

During the processing of this procedure, the respondent indicated that "The IT technicians used the robot.txt file but on that occasion did not subsequently check that access to the indicated URL was not accessible from Google; it could be that for some reason this measure did not work," having confirmed the claimant that their data is no longer indexed by Google in searches made from the claimant's name and consequently is not displayed in the list of results obtained from such searches.

Therefore, it is appropriate to uphold, for formal reasons, the claim submitted as the right was addressed belatedly.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

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FIRST: TO UPHOLD for formal reasons, the claim made by Mr. A.A.A. against the OFFICIAL DIARY OF CASTILLA-LA MANCHA. However, the issuance of a new certification by the respondent is not warranted, as the right has been addressed belatedly, without requiring the performance of additional actions by the controller.

SECOND: NOTIFY this resolution to Mr. A.A.A. and to the OFFICIAL DIARY OF CASTILLA-LA MANCHA.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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